

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Enoch Sowah	Team: Squad #07	CCRB Case #: 201901808	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 02/18/2019 2:12 PM	Location of Incident: En route to the 40th Precinct stationhouse; 40th Precinct stationhouse.	18 Mo. SOL 4/4/2021	Precinct: 40		
Date/Time CV Reported Mon, 02/25/2019 10:57 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/25/2019 10:57 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Karla Arvayo	03624	961318	040 PCT
2. POF Eliana Hernandez	12634	961816	040 PCT
3. SGT Manuel Barreto	00822	942978	040 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Isidore Rodriguez	09433	951161	040 PCT
2. POM Prabhjot Singh	09890	966344	040 PCT
3. POM Malik Mccloud	30082	954114	040 PCT
4. POM Kennol Thomas	13088	966365	040 PCT
5. POM Jeffrey Molina	05672	956940	040 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Karla Arvayo	Abuse: En route to the 40th Precinct stationhouse, Police Officer Karla Arvayo did not obtain medical treatment for § 87(2)(b)	A . Unfounded
B . POF Eliana Hernandez	Abuse: En route to the 40th Precinct stationhouse, Police Office Eliana Hernandez did not obtain medical treatment for § 87(2)(b)	B . Unfounded
C . SGT Manuel Barreto	Abuse: At the 40th Precinct stationhouse, Sergeant Manuel Barreto did not obtain medical treatment for § 87(2)(b)	C . Unsubstantiated
D . POF Karla Arvayo	Abuse: At the 40th Precinct stationhouse, Police Officer Karla Arvayo refused to provide her name to § 87(2)(b)	D . Unsubstantiated
E . POF Karla Arvayo	Abuse: At the 40th Precinct stationhouse, Police Officer Karla Arvayo refused to provide her shield number to § 87(2)(b)	E . Unsubstantiated
F . POF Karla Arvayo	Discourtesy: At the 40th Precinct stationhouse, Police Officer Karla Arvayo spoke discourteously to § 87(2)(b)	F . Unsubstantiated
G . POF Karla Arvayo	Abuse: At the 40th Precinct stationhouse, Police Officer Karla Arvayo threatened § 87(2)(b) with the use of force.	G . Unsubstantiated

Case Summary

On February 25, 2019, § 87(2)(b) called the CCRB and filed this complaint.

On February 18, 2019, at approximately 1:12 p.m., inside 408 East 138th Street in the Bronx, PO Eliana Hernandez and PO Karla Arvayo of the 40th Precinct arrested § 87(2)(b) for allegedly assaulting unidentified employees of a local convenience store. PO Arvayo and PO Hernandez allegedly refused to obtain medical treatment for § 87(2)(b) while transporting him to the 40th Precinct stationhouse in the Bronx (**Allegations A and B: Abuse of Authority, unfounded**). At the stationhouse, Sergeant Manuel Barreto allegedly refused to obtain medical treatment for § 87(2)(b) (**Allegation C: Abuse of Authority, unsubstantiated**). PO Arvayo allegedly refused to provide her name and shield number to § 87(2)(b) upon request (**Allegations D and E, Abuse of Authority, unsubstantiated**), allegedly spoke discourteously to § 87(2)(b) (**Allegation F: Discourtesy, unsubstantiated**), and allegedly threatened § 87(2)(b) with the use of force (**Allegation G: Abuse of Authority, unsubstantiated**).

PO Arvayo, PO Hernandez, PO Isidore Rodriguez and PO Prabhjot Singh of the 40th Precinct recorded this incident on their police body worn cameras.

Findings and Recommendations

Allegation (A) Abuse of Authority: En route to the 40th Precinct stationhouse, Police Officer Karla Arvayo did not obtain medical treatment for § 87(2)(b)

Allegation (B) Abuse of Authority: En route to the 40th Precinct stationhouse, Police Officer Eliana Hernandez did not obtain medical treatment for § 87(2)(b)

It is not disputed that § 87(2)(b) engaged in a physical altercation with employees of the convenience store, located at 408 East 138th Street in the Bronx, after § 87(2)(b) refused to pay for food items he had taken from the shelves, nor is it disputed that PO Arvayo, PO Hernandez, PO Rodriguez, PO Singh, PO Thomas Kennol and PO Malik McCloud, all from the 40th Precinct and identified via investigation, responded to the scene.

§ 87(2)(b) (BR01) said that en route to the 40th Precinct stationhouse, he told PO Arvayo and PO Hernandez that he wanted to be removed to the hospital, and that PO Arvayo and PO Hernandez allegedly refused to take him to the hospital, and said doing would delay his processing. The officers allegedly told § 87(2)(b) that he would be released immediately when they arrived at the stationhouse with a desk appearance ticket, and that there was no need for them to remove him to the hospital.

PO Hernandez's and PO Arvayo's BWC (BR02-BR03) at 14:09:14 and 14:09:12, respectively, shows § 87(2)(b) asking PO Arvayo while being escorted to the patrol vehicle if he is being removed to the hospital. PO Arvayo asks § 87(2)(b) if he wants to go to the hospital. § 87(2)(b) slurs in his speech and does not appear to answer in the affirmative. PO Arvayo places § 87(2)(b) in the backseat of the patrol vehicle and together with PO Hernandez transport him to the 40th precinct stationhouse. PO Hernandez and PO Arvayo both keep their BWCs active during the transport of § 87(2)(b) to the stationhouse, and does not capture any interactions between § 87(2)(b) and the officers while en route to the stationhouse, nor does it depict § 87(2)(b) requesting for medical attention. The footage also does not depict officers on the scene or in the vehicle refusing to obtain medical treatment for § 87(2)(b).

§ 87(2)(g)

§ 87(2)(g) As such, it is recommended that **Allegations A and B** be closed as **unfounded**.

Allegation (C) Abuse of Authority: At the 40th Precinct stationhouse, Sergeant Manuel Barreto did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) said that upon arrival at the stationhouse, he told all the officers at the desk that he wanted medical attention, but that they all ignored him. § 87(2)(b) could not describe any of the officers, except the desk officer, identified via investigation as Sgt. Barreto. He also said his request for medical attention was not directed at any particular officer, but all the officers at the stationhouse. § 87(2)(b) was then kept in handcuffs, placed in leg shackles, and lodged in the cell. § 87(2)(b) did not know why the handcuffs and the leg shackles were placed on him.

Inside the cells, § 87(2)(b) yelled and requested that the leg shackles and handcuffs be removed, but the officers ignored him. Approximately 45 minutes later, an officer, who § 87(2)(b) could not describe, entered the cells and asked § 87(2)(b) if he still required medical attention. § 87(2)(b) said yes. The officer then told § 87(2)(b) that he was handcuffed and put in leg shackles because of his request for medical attention, and that the shackles and the handcuffs would be removed if § 87(2)(b) withdrew his request for medical attention. § 87(2)(b) said he no longer required medical treatment, at which point the leg shackles and handcuffs were removed. § 87(2)(b) spent approximately five hours at the stationhouse, and at no point did he receive medical treatment, nor did he subsequently seek medical treatment on his own.

PO Hernandez and PO Arvayo's BWC does not show § 87(2)(b) requesting for medical attention at any point while he is in front of the stationhouse front desk. § 87(2)(b) however, refuses to allow PO Arvayo search him or obtain his name and pedigree information. PO Rodriguez thus searches § 87(2)(b) before the desk and escorts him to the stationhouse bathroom.

PO Rodriguez's BWC (BR04) at 14:22:29, shows § 87(2)(b) who confirms to PO Rodriguez that he is intoxicated, asking PO Rodriguez to release and allow him to go home without being processed. PO Rodriguez informs § 87(2)(b) that he has to be searched, lodged in the cells, and processed before he is eventually released from the stationhouse. At 14:25:13, § 87(2)(b) says to PO Rodriguez, "I want to speak to a white shirt. If not, then I want to go to the hospital. If you are going to book me in the system, then I want to go to the hospital." PO Rodriguez asks § 87(2)(b) why he wants to go the hospital. At 14:25:32, § 87(2)(b) replies, "I got hit in the head.... I want to go the hospital to make sure I don't have a concussion. How about that.... Fuck the process." § 87(2)(b) refuses to allow PO Rodriguez to remove his belt and search his shoes, and reputedly tells PO Rodriguez to either release him or call a supervisor to the bathroom.

At 14:35:57, Sgt. Barreto enters the bathroom and engages § 87(2)(b) in Spanish. § 87(2)(b) tells Sgt. Barreto that the officers either release and allow him to go home or send him to the hospital where he could at least get some ham sandwiches. Sgt. Barreto tells § 87(2)(b) that things are bit busy at the stationhouse, and that he would attend to § 87(2)(b) if he allows the officers to complete their search and lodge him in the cells. § 87(2)(b) refuses and tells Sgt. Barreto that the they either release him or send him to the hospital. At 14:36:30, Sgt. Barreto instructs PO Rodriguez to leave § 87(2)(b) in handcuffs, place leg shackles on him, and lodge him in the cells. At 14:37:00, Sgt. Barreto instructs an officer, who is not depicted in the camera,

to call EMS for § 87(2)(b). At 14:38:02, PO Rodriguez and PO Singh attempt to place leg shackles on § 87(2)(b). § 87(2)(b) yells and becomes extremely agitated when the officers attempt to place the leg shackles on him, and asks if he is being placed in protective custody. At 14:38:32, Sgt. Barreto replies, “You want to go to the hospital, right?” At 14:38:55, PO Rodriguez places the shackles on § 87(2)(b)’s legs. At 14:39:56, § 87(2)(b) asks PO Rodriguez to remove the shackles. PO Rodriguez replies, “You are going to the hospital, right?” At 14:40:40, Sgt. Barreto informs § 87(2)(b) that he is going to the hospital and that the officers are about to request an ambulance for him. At 14:40:42, § 87(2)(b) replies, “Fuck you too.” At 14:44:46, PO Rodriguez and PO Singh escort § 87(2)(b) out of the bathroom and lodge him in the cell.

There are no additional BWC or stationhouse videos which capture any subsequent interaction between § 87(2)(b) and officers inside the holding cells.

Sgt. Barreto (BR05) and PO Rodriguez (BR06) both had no recollection of this incident, nor did they recall coercing or discouraging § 87(2)(b) from receiving medical treatment.

Sgt. Barreto, after reviewing PO Rodriguez’s BWC, said that the fact that § 87(2)(b) was handcuffed and put in leg shackles indicated that the officers were in the process of removing him to the hospital, but that did he know why § 87(2)(b) did not eventually receive medical treatment. Sgt. Barreto denied that § 87(2)(b) was deliberately put in handcuffs and leg shackles to discourage him from obtaining medical treatment, and said departmental procedure required that all prisoners be handcuffed and put in leg shackles prior to being removed to the hospital. Sgt. Barreto did not recall which officer he instructed to request an ambulance for § 87(2)(b) nor did he recall if ever complied and requested the ambulance. Sgt. Barreto said that it was possible § 87(2)(b) might have withdrawn his request for medical attention before the officers tried to request an ambulance, especially given that § 87(2)(b)’s request for medical attention was dependent on being released from the stationhouse, or that the officer responsible for requesting the ambulance might have forgotten to do so given how busy it was at the stationhouse and given that the incident occurred at the cusp of a tour change.

PO Rodriguez, after reviewing his body worn camera footage, said did not recall if he was the officer Sgt. Barreto instructed to request an ambulance for § 87(2)(b) nor did he recall which officer was instructed to call the ambulance. PO Rodriguez said he and PO Singh returned to patrol a few minutes after § 87(2)(b) was lodged in the cell, and that he did not recall any interaction between himself and § 87(2)(b) beyond what is depicted in his BWC.

PO Rodriguez’s and PO Singh’s memo books confirms that they responded to an incident within the precinct approximately 15 minutes after § 87(2)(b) was lodged in the cell (BR07-BR08).

There was no Medical Treatment of Prisoner Report prepared for this incident (BR09). The Command Log described § 87(2)(b)’s condition as “normal,” and does not make any mention of a request or transport for medical attention. The Command Log, however, notes that § 87(2)(b) was transported to the Bronx Criminal Court approximately 2 hours after he was arrested (BR10).

NYPD Patrol Guide, Procedure 210-04, states that officers are required to obtain medical treatment for prisoners in police custody when the prisoner requires it, and that the prisoner must be rear cuffed and placed in leg restraints before being transported to the hospital. Officers are also required to prepare medical treatment form for all prisoners who receive or refuse medical treatment (BR11).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that Allegation C be closed as **unsubstantiated**.

Allegation (D) Abuse of Authority: At the 40th Precinct stationhouse, Police Officer Karla Arvayo refused to provide her name to § 87(2)(b)

Allegation (E) Abuse of Authority: At the 40th Precinct stationhouse, Police Officer Karla Arvayo refused to provide her shield number to § 87(2)(b)

Allegation (F) Discourtesy: At the 40th Precinct stationhouse, Police Officer Karla Arvayo spoke discourteously to § 87(2)(b)

Allegation (G) Abuse of Authority: At the 40th Precinct stationhouse, Police Officer Karla Arvayo threatened § 87(2)(b) with the use of force.

§ 87(2)(b) said that while being escorted out of the 40th Precinct stationhouse, he asked PO Arvayo, who was at the front desk, for her name and badge number, and said to her, “Karma is something...God doesn’t like evil.” § 87(2)(b) first said PO Arvayo said to him, “Keep talking and you are going to keep getting beat,” but then said PO Arvayo said, “Keep fucking talking and that’s why you are going to keep fucking getting beat up.” § 87(2)(b) finally said

PO Arvayo said to him, “That’s why you are going to keep fucking getting beat up because of your fucking mouth.” When asked which of these statements PO Arvayo allegedly made to him, § 87(2)(b) declined to answer the question.

PO Arvayo (BR12) denied making any of alleged discourteous statements and threats to § 87(2)(b) denied refusing to provide her name and shield number to § 87(2)(b) and denied using any form of profanities towards § 87(2)(b) at any point during this incident. PO Arvayo said she had no subsequent interaction with § 87(2)(b) after he was brought to the stationhouse.

§ 87(2)(g)
It is therefore recommended that **Allegations D through G** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two CCRB complaints and has been a named victim in 18 allegations (BR13)
 - § 87(2)(b)
- Sgt. Barreto has been a member-of-service for 12 years and has been a subject in three CCRB complaints and five allegations, none of which were substantiated, § 87(2)(g)
- PO Arvayo has been a member-of-service for three years and has been a subject in two CCRB complaints and two allegations, one of which was exonerated, and the other of which is pending investigation. § 87(2)(g)
- PO Hernandez has been a member-of-service for three years and this is the first CCRB complaint to which she has been a subject.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- On August 22, 2019, a Notice of Claim inquiry was sent to the NYC Office of the Comptroller, and the inquiry is still pending. The results will be added to the case file upon receipt (BR14).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date